

24NNCV06336 24NNCV06336

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Case Number: 24NNCV06336 Hearing Date: August 7, 2026 Dept: A

TENTATIVE RULING

AUGUST 7, 2026

MOTION FOR TERMINATING SANCTIONS

Los

Angeles Superior Court Case # 24NNCV06336

MP: Plaintiff

Fanxin Zeng

RP: No

opposition received

NOTICE:

The Court is not requesting oral argument on this matter. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is required and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to appear and argue. The tentative ruling will become the ruling of the court if no argument is received.

Notice may be given

either by email at or by telephone at (818) 260-8412.

ALLEGATIONS:

Fanxin Zeng ("Plaintiff")

alleges that in June 2016, Plaintiff, Defendant Zhong Fang's ("Fang"), and Fang's attorney Ke Ye discussed Plaintiff's interest in obtaining a U.S. EB-5 investment visa. On July 1, 2026,

Plaintiff and Defendant California Investment Regional Center, LLC ("CIRC"), a company controlled by Fang, entered into a written agreement whereby Plaintiff would invest \$500,000 into the CIRC EB-5 Long Beach regional center project and be required to pay an additional \$50,000 for administrative and attorney's fees, in exchange for Defendants preparing all EB-5 application materials to submit to United States Customs and Immigration Service ("USCIS"). On March 12, 2024, USCIS denied Plaintiff's EB-5 application, stating that his investment funds were not "at risk" and did not constitute a qualifying EB-5 investment.

Plaintiff sought a refund of his \$550,000 investment funds, administrative and attorney's fees, but Defendants refused and invested his funds in a Hawaii project.

The Complaint, filed December 5, 2024, alleges: (1) Breach of Contract; (2) Fraud; and (3) Negligent Misrepresentation.

On April 22, 2025,
CIRC's default was entered.

On May 8, 2025, Fang
(a self-represented litigant) answered the Complaint.

MOTION ON CALENDAR:

On June 17, 2026, Plaintiff
filed a Motion for Terminating Sanctions against Fang. The
Court is not in receipt of an opposition brief.
The Court notes that, pursuant to C.R.C. Rule 8.54(c), a failure to
oppose a motion may be deemed consent to its being granted.

LEGAL STANDARD:

C.C.P. § 2023.030 permits the Court to

impose terminating sanctions for discovery misuses defined in C.C.P. § 2023.010. These misuses include not responding to discovery and the failure to comply with a Court discovery order.

The

Court weighs the following factors when considering the present motion: (1) defendants' conduct, indicating whether their actions were willful; (2) the detriment to the party seeking discovery; and (3) the number of formal and informal unsuccessful attempts to obtain discovery. (Lang v. Hochman (2000) 77 Cal.App.4th 1225, 1246.) Ultimate discovery sanctions are justified where there is a willful discovery order violation, a history of abuse, and evidence showing that less severe sanctions would not produce compliance with discovery rules. (Van Sickle v. Gilbert (2011) 196 Cal.App.4th 1495, 1516.)

ANALYSIS:

Plaintiff moves for terminating sanctions against Fang, such that the Court strike Fang's answer, enter his default, and lift the stay previously awarding \$683.70 in sanctions.

The relevant procedural background is as follows. On October 13, 2025, Plaintiff served on Defendant the discovery requests and, despite efforts to contact Plaintiff for responses, Plaintiff only provided a single document. On March 13, 2026, Plaintiff filed a motion to compel Fang's initial responses to Request for Production of Documents ("RPD"), set one, which was unopposed. On May 1, 2026, the Court granted the motion, ordering Fang to provide verified responses within 30 days. The Court also awarded \$683.70 in sanctions, but stayed the order provided Fang complied with the Court's order and there were no future unjustified discovery violations. (May 1, 2026 Minute Order at p.3.)

Plaintiff's counsel Kenneth Gross states that he served Fang with a copy of the Court's May 4, 2026 order and that Fang has not responded by the June 1, 2026 deadline. (Gross Decl., ¶¶4-6.) Plaintiff argues that Fang has willfully ignored the Court's order and has not served RPD responses. Plaintiff also argues that he has propounded Form Interrogatories and Requests for Admission on March 23, 2026, which have also been ignored, and that he has a motion to compel and motion to deem RFAs admitted set for August 21, 2026.

At this time, the Court declines to impose terminating sanctions against Fang. Terminating sanctions should only be imposed if other sanctions would prove futile. This would include monetary, issue and evidentiary sanctions. Clearly monetary sanctions have not proven effective but Plaintiff has not shown that issue or evidentiary sanctions would prove ineffective.

While Fang has not yet complied with the Court's May 1, 2026 order, the Court will lift the stay on the sanctions order and impose the \$683.70 in sanctions so that they are due and payable within 30 days of this order. Based on Mr. Gross's declaration, other than sending a copy of the May 4, 2026 order, there does not appear to be any further follow-up communications seeking Fang's discovery responses.

If Fang continues to show noncompliance with his discovery obligations prior to or following the August 21, 2026 discovery motions on calendar, Plaintiff may re-file a motion for terminating sanctions showing whether Fang engaged in a pattern of willful discovery violations. Furthermore, if a Request for Admissions is granted, proceeding with a Judgment on the Pleadings may be a more appropriate procedure depending on the nature of the admissions.

The motion for terminating sanctions is denied without prejudice.

The request to lift the May 1, 2026 stay on the \$683.70 sanctions amount is granted and due within 30 days.

RULING:

In the event a party requests a signed order or the court in its discretion elects to sign a formal order, the following form will be either electronically signed or signed in hard copy and entered into the court's records.

ORDER

Plaintiff Fanxin

Zeng's Motion for Terminating Sanctions came on regularly for hearing on August 7, 2026, with appearances/submissions as noted in the minute order for said hearing, and the court, did then and there rule as follows:

the Motion FOR

TERMINATING SANCTIONS AGAINST DEFENDANT ZHONG FANG IS DENIED WITHOUT PREJUDICE.

THE MAY 1,

2026 STAY ON THE \$683.70 MONETARY SANCTIONS IN CONNECTION WITH PLAINTIFF'S

MOTION TO COMPEL DEFENDANT FANG'S INITIAL RESPONSES TO THE REQUEST FOR PRODUCTION OF DOCUMENTS IS LIFTED. Defendant FANG IS ordered to

pay \$683.70

in monetary sanctions to Plaintiff, by

and through counsel WITHIN 30 DAYS OF THIS ORDER.

Plaintiff

TO GIVE NOTICE.

IT IS SO ORDERED.